Sanjay Khandelwal vs Cbi on 25 July, 2024

Author: Dinesh Kumar Sharma

Bench: Dinesh Kumar Sharma

$~30 to 32
* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.A. 321/2021
SANJAY KHANDELWAL
Through:

ve
CBI
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+ CRL.A. 332/2021
M/S DOMCO PRIVATE LTD
Through:
ve
CBI
Through: Ms. Tarannum C
N, Mr. Akash S
+ CRL.A. 349/2021, CRL.M.(BAIL) 1372/2021
VASANT DIWAKAR MANJREKAR & ANR.
Th
ve

CENTRAL BUREAU INVESTIGATION
Through: Ms. Tarannum Chema
N, Mr. Akash Singh
CORAM:
HON'BLE MR. JUSTICE DINESH KUMAR SHARMA
ORDER

% 25.07.2024 CRL.M.(BAIL) 1309/2021 in CRL.A. 321/2021 CRL.M.A. 858/2022, CRL.M.(BAIL) 1331/2021 in CRL.A. 332/2021

1. Mr. N. Harisharan, learned senior counsel submits that a point which This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:05 needs consideration of this Court is whether suspension of the sentence includes suspension of the fine imposed by the learned Trial Court.

2. Mr. Tarannum Chimma, learned counsel for the CBI submits that in fact while suspending the sentence, this Court had left the prayer for waiver of the fine upon and notice was issued to the respondent.

3. The matters are also ripe for the final hearing.

4. Let the matter be listed for the final hearing including the question as raised shall also be considered on 25.11.2024.

5. Interim orders, if any, to continue.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:05 $~33 and 34 * IN THE HIGH COURT OF DELHI AT NEW DELHI PURAN CHAND KAUSHAL .....Appellant Through: Mr. Kumar Vaibhaw, Mohd. Ashaab Advs. with Appellant in person versus SATISH CHAND SHARMA .....Respondent Through: Mr. Abhishek Chauhan, Mr. Arvind Sharma, Advs.

+ CRL.REV.P. 156/2022, CRL.M.A. 22299/2023 SATISH CHAND SHARMA .....Petitioner Through: Mr. Abhishek Chauhan, Mr. Arvind Sharma, Advs.

versus PURAN CHAND KAUSHAL .....Respondent Through: Respondent in person.

CORAM:

> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 On behalf of Satish Chand Sharma an adjournment has been sought as the main counsel Mr. Manish Chopra is not well. However, adjournment has been opposed by Mr. Puran Chand Kaushal.
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> List on 20.08.2024.
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> DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:05 $~35 * IN THE HIGH COURT OF DELHI AT NEW DELHI DINESH YADAV @ MICHAEL .....Appellant Through: Ms. Pallavi Garg, Mr. Harsh Prabhakar, Ms. Anjana Prabhakar, Mr. Dhruv Chaudhary, Ms. Sikha Garg, Ms. Eshita Pallavi, Mr.Adeeb Ahmad, Advs.
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> versus
> STATE (NCT) OF DELHI
> Through:

Ms. Priyanka Dalal, APP for the State with ASI Gajraj Singh, PS Gokulpuri CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 CRL.M.(BAIL) 535/2024 in CRL.A. 122/2022

1. The present application has been moved under Section 389 Cr. PC seeking suspension of the sentence. The appellant has been convicted in Sessions Case no. 95/2021 titled "State v. Dinesh Yadav @ Michael".

2. Learned counsel for the appellant submits that the appellant has undergone substantial amount of sentence and there is no possibility of hearing the appeal in the near future therefore, the sentence may be suspended.

3. Learned APP for the State has opposed the suspension of sentence on the ground that the appellant has been convicted for the serious offence and his conduct in the jail is also not proper.

4. The perusal of the Nominal Roll dated 22.02.2022 indicates that as on This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:05 that date, the appellant had undergone the custody of 01year 10 months and 14 days. The appellant is stated to be in custody since then. So by this period, the appellant has undergone the custody of more than 4 years out of 5 years.

5. The Hon'ble Apex Court in Saudan Singh v. State of U.P. 2021 SCC OnLine SC 3259, established a broad standard to accept applications for sentence suspension in circumstances other than life imprisonment, and inter alia held that it should be noted that there may even be prisoners serving sentences other than life in prison, and in those instances, the general guideline of 50% of the actual sentence served may serve as the foundation for granting bail.

6. Further, the Apex court while considering an application seeking suspension of sentence in Atul @ Ashutosh v. State of Madhya Pradesh; SLP (CRL) No. 1049/2024, while reiterating the settled law with regard to suspending the sentence of the appellant inter-alia held as under:

> "Before parting with order, we must note here that notwithstanding several decisions of this Court holding that when there is a fixed term sentence and especially when the appeal is not likely to be heard before completing entire period of sentence, normally suspension of sentence and bail should be granted. We find that in several deserving cases, bail is being denied. Such cases should never be required to be brought before this Court."

(Emphasis Supplied)

7. Thus, without going into the merits of the case and taking into account the period of incarceration, the sentence is suspended subject to furnishing a personal bail bond of Rs. 10,000/- with one surety of This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:05 the like amount to the satisfaction of the concerned Trial Court and subject to the appellant providing his mobile number at the time of furnishing the bail bond, and also subject to the following conditions;

(i)The appellant shall remain available on his mobile number which he undertakes to keep operational during the pendency of the present appeal.

(ii) The appellant shall further remain in touch telephonically with police officer in-charge on his mobile number on the first Monday of every month.

(iii) The petitioner shall remain available on his residential address and shall not leave the NCT of Delhi without the permission of the learned Trial Court.

(iv) In the event of a change of his residential address/ contact details, the appellant shall promptly inform the same to the concerned police officer in charge and the court.

(v)The appellant shall remain present in the Court as and when the appeal is taken up for hearing.

8. Copy of the order be sent to the concerned Jail Superintendent for information and compliance.

9. List the matter in the category of regular matters in due course.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:05 $~36 * IN THE HIGH COURT OF DELHI AT NEW DELHI SUBHASH .....Appellant Through: Mr. Harsh Prabhakar, Ms. Anjana Prabhakar, Mr. Dhruv Chaudhary, Ms. Sikha Garg, Ms. Eshita Pallavi, Mr.Adeeb Ahmad, Advs.

versus THE STATE NCT OF DELHI .....Respondent Through: Mr. Raghuvinder Varma, APP for the State with WSI Himika, PS Sultanpuri CORAM:

> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 CRL.M.(BAIL) 133/2023
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> 1. The present application has been moved under Section 389 Cr. PC seeking suspension of the sentence. The appellant has been convicted R.I. for offence u/s 6 of

> the POCSO Act for a period of 14 years also a fine of rupees 20,000/- and for the offence u/s 363 IPC convicted for 7 years R.I., for the offence u/s 366 IPC the appellant has been convicted for a period of 10 years R.I. and further, a period of 3 months S.I. in case of non-payment of fine.
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> 2. Learned counsel for the appellant submits that the appellant has undergone a substantial amount of sentence and there is no possibility of hearing the appeal in the near future therefore, the sentence may be This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:05 suspended.

3. Learned APP for the State has opposed the suspension of sentence on the ground that the appellant has been convicted for a serious offence.

4. The perusal of the Nominal Roll dated 09.11.2023 indicates that as on that date, the appellant had undergone the custody of 06 years 09 months and 05 days. The appellant is stated to have been in custody since then. So by this period, the appellant has undergone custody of more than 7 years out of 14 years.

5. The notice of the application for suspension of the sentence was already given to the prosecutrix and the father of the prosecutrix has appeared as indicated in the order dated 21.11.2023.

6. The Hon'ble Apex Court in Saudan Singh v. State of U.P. 2021 SCC OnLine SC 3259, established a broad standard to accept applications for sentence suspension in circumstances other than life imprisonment, and inter alia held that it should be noted that there may even be prisoners serving sentences other than life in prison, and in those instances, the general guideline of 50% of the actual sentence served may serve as the foundation for granting bail.

7. Further, the Apex court while considering an application seeking suspension of sentence in Atul @ Ashutosh v. State of Madhya Pradesh; SLP (CRL) No. 1049/2024, while reiterating the settled law with regard to suspending the sentence of the appellant inter-alia held as under:

> "Before parting with order, we must note here that notwithstanding several decisions of this Court holding that when there is a fixed term sentence and especially when the appeal is not likely to be heard before completing entire This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 period of sentence, normally suspension of sentence and bail should be granted. We find that in several deserving cases, bail is being denied. Such cases should never be required to be brought before this Court."

(Emphasis Supplied)

8. Thus, without going into the merits of the case and taking into account the period of incarceration, the sentence is suspended subject to furnishing a personal bail bond of Rs. 10,000/- with one surety of the like amount to the satisfaction of the concerned Trial Court and subject to the appellant providing his mobile number at the time of furnishing the bail bond, and also subject to the following conditions;

(i) The appellant shall remain available on his mobile number which he undertakes to keep operational during the pendency of the present appeal.

(ii) The appellant shall further remain in touch telephonically with police officer in-charge on his mobile number on the first Monday of every month.

(iii) The petitioner shall remain available at his residential address and shall not leave the NCT of Delhi without the permission of the learned Trial Court.

(iv) In the event of a change of his residential address/ contact details, the appellant shall promptly inform the same to the concerned police officer in-charge and the court.

(v) The appellant shall remain present in the Court as and when the appeal is taken up for hearing.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06

9. A copy of the order be sent to the concerned Jail Superintendent for information and compliance.

10.In view of the above, the present application stands disposed of.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~37 * IN THE HIGH COURT OF DELHI AT NEW DELHI STATE NCT OF DELHI .....Appellant Through: Mr. Satish Kumar, APP for the State with Inspector Anil Kumar, PS Patel Nagar.WSI Mamta PS Dabri versus ALMUDDIN .....Respondent Through:

CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 None has appeared for the respondent. Issue Court Notice to the respondent as well as Counsel, returnable on 18.02.2025.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~38 * IN THE HIGH COURT OF DELHI AT NEW DELHI KISHAN DEV .....Appellant Through: Mr. Ajit Kumar, Mr. Rashmi Priya, Mr. Rakesh Kumar,Mr.Om Prakash, Ms. Nutan Kumari, Mr. O.B.Lal, Mr. R.C. Verma, Mr. B.B.Sharma, Ms.Amita Singh, Advs.

versus NCT OF DELHI & ANR. .....Respondents Through: Mr. Satish Kumar, APP for the State with SI Raghubir Prasad, PS Khayala CORAM:

> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 Let the Appellant file brief written submissions not exceeding five pages along with the copy of judgments they wish to rely upon.
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> List the matter in due course.
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> DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~39 * IN THE HIGH COURT OF DELHI AT NEW DELHI STATE .....Petitioner Through: Mr. Rahuvinder Varma, APP for the State with SI Sanjay Yadav, PS Anand Parbat.
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> versus RAVI KUMAR & ORS .....Respondents Through:
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> CORAM:
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> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 Issue Court notice to Mr. Arpit Batra, Amicus Curies, returnable on 05.02.2025.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~40 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.L.P. 366/2015, CRL.M.A. 6697/2015 STATE GOVT OF NCT OF DELHI .....Petitioner Through: Ms. Priyanka Dalal, APP with SI Poonam Mal, PS Delhi versus BICHALU & ANR .....Respondents Through:

> CORAM:
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> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 Learned APP for the State submits that fresh bailable warrants be issued and the process may be given dasti.

Let fresh bailable warrants be issued in the sum of Rs.5,000/- against the petitioner through the concerned IO, returnable on 18.02.2025 and the process may be given dasti.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~41 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.L.P. 321/2016, CRL.M.A. 9257/2016 M/S SHREE GANGA CEMENT PRIVATE LIMITED .....Petitioner Through: Mr.J.C. Mahindra, Adv.

versus SATYA DEV SHARMA .....Respondent Through: Mr. Rajesh Kaushik, Mr. Sunil Sirohi, Mr. P. Sagar, Mr. Piyush Thakur, Advs.

CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 None has appeared for the petitioner. Adverse order is being deferred. List on 17.02.2025.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~42 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.L.P. 435/2016, CRL.M.A. 12786/2016 STATE (GOVT OF NCT OF DELHI) .....Petitioner Through: Ms.Priyanka Dalal, APP for the State with SI Monika Rawat, PS Ashok Vihar.

versus BAJRANG BALI SINGH .....Respondent Through: Mr. Kushdeep Gaur, Advocate CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 The reply on behalf of the respondent has already on the record. List the matter for final hearing on 12.02.2025. Both the parties are directed to file the brief written submissions not exceeding five pages within four weeks along with judgments they wish to rely upon with an advance copy to the opposite party.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~43 * IN THE HIGH COURT OF DELHI AT NEW DELHI YOGENDER KUMAR SHARMA .....Petitioner Through:

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Chaudahry, Mr. Bharat Chaudhary, Mr. Vikram Singh, Mr. Amit Sharma, Mr. Vishesh Kumar, Ms. Vinita, Ms. Vinita, Ms. Rakhi, Ms. Tanya Panwar, Advs. for R-2 CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 None has appeared for the petitioner. Adverse order is being deferred. List on 19.02.2025.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~44 * IN THE HIGH COURT OF DELHI AT NEW DELHI CENTRAL BUREAU OF INVETIGATION .....Petitioner Through: Mr. Ishaan Aggarwal, Mohd. Changej Ali Khan, for Mr. Rajesh Kumar, SPP versus NARAYAN DIWAKAR & ANR .....Respondents Through: Mr. Udit Mishra, Mr.Sanjay Diwakar, Advs. for R-1 Mr. N.D. Kaushik in person.

CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 An adjournment has been sought on behalf of the CBI as Mr. Rajesh Kumar, SPP for the CBI is not well.

List on 20.02.2025.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~45 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.L.P. 577/2017, CRL.M.A. 16439/2017 STATE .....Petitioner Through: Ms. Priyanka Dalal, APP for the State with SI Vinod Bhati, PS Mehrauli versus PRAKASH .....Respondent Through:

CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 None has appeared for the respondent. Issue Court notice to the respondent, returnable on 21.02.2025 Learned APP for the State submits that even the respondent has not filed the reply.

List the matter for the final hearing. Let the State file brief written submissions not exceeding five pages along with the copy of judgments they wish to rely upon.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~46 * IN THE HIGH COURT OF DELHI AT NEW DELHI NEERAJ PURI .....Petitioner Through:

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CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 None has appeared for the petitioner. The adverse order is being deferred. List on 24.02.2025.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~47 & 48 * IN THE HIGH COURT OF DELHI AT NEW DELHI YUVDEEP SOLANKI .....Petitioner Through:

versus THE STATE GOVT OF NCT OF DELHI & ORS .....Respondents Through: Mr. Satish Kumar, APP for the State with SI Sandeep PS Dabri Mr.Sameer Chandra, Mr. Shubham Parashar, Mr.Aryan Tomar, Mr. Himanshu Yadav, Advs. for R-2, 5 to 7 and 9 DEVENDER SINGH & ANR .....Petitioners Through: Mr.Sameer Chandra, Mr. Shubham Parashar, Mr.Aryan Tomar, Mr. Himanshu Yadav, Advs.

versus THE STATE (NCT OF DELHI) & ORS .....Respondents Through: Mr. Satish Kumar, APP for the State with SI Sandeep PS Dabri CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 The petitioner in CRL.L.P 625/2017 has not appeared.

This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 Adverse order is deferred.

List on 25.02.2025.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal

by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~49 * IN THE HIGH COURT OF DELHI AT NEW DELHI CARGILL INDIA PVT LTD .....Petitioner Through: Mr. Amit Singh Chauhan, Ms. Sikha Chauhan, Ms. Shaima Masood, Advs. versus M/S VINUSS FOODS PRODUCTS & ORS. .....Respondents Through:

CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 Learned counsel for the petitioner submits that the respondent has not been appearing since 23.07.2023.

List the matter for the final hearing on 19.02.2025.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~50 * IN THE HIGH COURT OF DELHI AT NEW DELHI RENU SAPRA .....Petitioner Through: Mr. Ayush Ranjan Jha, Adv.

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CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 On behalf of the respondent, an adjournment has been sought to file the reply.

Let the reply be filed positively within four weeks with an advance copy to the learned counsel for the petitioner. Rejoinder thereto, if any, be filed within four weeks thereafter with an advance copy to the learned counsel for the respondent.

List on 26.02.2025.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~51 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.M.C. 1299/2018, CRL.M.A. 4752/2018 BALBIR SINGH & ANR .....Petitioners Through: Mr. R. H. Handoo, Adv.(VC) with Mr.Vivek Suir, Ms. Kajal, Advs. versus THE STATE & ANR .....Respondents Through: Mr. Raghuvinder Varma, APP for the State with Inspector Satyabir Singh, EOW Ms. Kirti Mewar, Ms. Ira

Dhingra, Advs. for R-2 CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 Mr. R. H. Handoo, learned counsel for the petitioner has appeared through VC and his voice is not audible properly.

Both parties are directed to file the brief written submissions not exceeding three pages within four weeks along with judgments they wish to rely upon with an advance copy to the opposite party.

List on 10.02.2025 DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~52 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.M.C. 1447/2018, CRL.M.A. 13801/2022 PRAVEEN ARYA .....Petitioner Through:

versus THE STATE OF NCT OF DELHI .....Respondent Through: Mr. Raghuvinder Varma, APP for the State with SI Avinash Kumar PS Anand Vihar.

Mr. Pramod Gupta, Adv. for R-2 CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 None has appeared for the petitioner. Even on the last date, none has appeared for the petitioner Hence, the present petition stands dismissed in default for non-prosecution.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~53 * IN THE HIGH COURT OF DELHI AT NEW DELHI SHAMIM BANO .....Petitioner Through:

versus STATE OF NCT OF DELHI & ORS .....Respondents Through: Mr. Priyanka Dalal, APP for the state with Mr. Mayank Nagi, Adv. for R-2 to 4 CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 None has appeared for the petitioner even on the second call. Hence, the present petition stands dismissed in default for non- prosecution.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~54 * IN THE HIGH COURT OF DELHI AT

NEW DELHI + CRL.M.C. 3505/2018, CRL.M.A. 12741/2018 VIVEK TYAGI .....Petitioner Through: Mr. Ashok Drall, Mr. Aashi Drall, Mr.Chirag kumar Advs.

versus M/S IRIS COMPUTORS LTD. .....Respondent Through:

CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 The respondents have not been served. Let respondents be served again through all permissible modes including e-mail upon taking steps by the petitioner, returnable on 13.02.2025.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~55 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.M.C. 5881/2018, CRL.M.A. 48050/2018 BRIJESH NARAIN SHARMA & ORS .....Petitioners Through: Ms.Palak Munjal, Mr. Gaurav, Ms.Shrishti Gupta, Abhay, Sanjeev Mehra, Subhash, Bhupender, Sumit, Saurav, Rahul and Mahipal versus THE STATE .....Respondent Through: Ms. Priyanka Dalal, APP for the state with SI Vineet Kumar, PS Neb Sarai, CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 Learned counsel for the petitioner seeks permission to withdraw the present petitioner as the charge-sheet was already filed before the learned Trial Court.

In view of the submissions made above, the present petition stands dismissed as withdrawn.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~56 * IN THE HIGH COURT OF DELHI AT NEW DELHI M/S ADIVA HOSPITAL PVT LTD .....Petitioner Through:

versus M/S ADIVA HEALTH CARE PVT LTD & ORS .....Respondents Through:

CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 None has appeared for the petitioner. Even, none has appeared for the petitioner for the last several dates. Hence, the present petition stands dismissed in default for non-prosecution.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~57 * IN THE HIGH COURT OF DELHI AT NEW DELHI POOJA MANDAL @ POOJA RAI .....Petitioner Through: Ms.Manika Tripathy, Mr.Ashutosh Kaushik, Mr. Naveen Saraswat, Advs. versus STATE OF NCT OF DELHI &ANR .....Respondents Through: Mr. Satish Kumar, APP for the State with SI Ranjana, PS Subji Mandi. Mr. Lalit Yadav, Mr.Bhimjyoti, Ms.Jyoti Sharma for R-2 CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 Both parties are directed to file the brief written submissions before the next date of hearing not exceeding five pages along with judgments they wish to rely upon with an advance copy to the opposite party.

List on 16.10.2024.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~58 & 59 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.M.C. 6562/2018, CRL.M.A. 50487/2018 PRAVEEN KUMAR .....Petitioner Through:

versus SMT. DEEKSHA .....Respondent Through:

+ CRL.M.C. 6607/2018, CRL.M.A. 50619/2018
DHARAMPAL
Through:

ve

JAGAT SINGH

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CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 None has appeared for the petitioner. Even on the last date, none has appeared for the petitioner Hence, the present petition stands dismissed in default for non-prosecution.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC

Server on 29/07/2024 at 22:28:06 $~60 * IN THE HIGH COURT OF DELHI AT NEW DELHI DIRECTORATEOF ENFORCEMENT .....Petitioner Through: Mr. Vivek Gurnani, Mr. Kartik Sabharwal, for Mr.Zoheb Hossain, Special counsel ED versus SUSHEN MOHAN GUPTA .....Respondent Through: Mr. Sidharth Aggarwal, Sr.Adv. CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 The present application has been moved seeking cancellation of bail. On behalf of the petitioner, an adjournment has been sought as Mr. Zoheb Hossain, learned Special Counsel is not available today.

Mr. Sidharth Aggarwal, learned senior counsel has opposed the adjournment on the ground that the petition has been pending for the last five years.

List the matter for the final hearing on 31.07.2024. In the meantime, both parties are directed to file the brief written submissions before the next date of hearing not exceeding five pages along with judgments they wish to rely upon with an advance copy to the opposite party.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~61 and 62 * IN THE HIGH COURT OF DELHI AT NEW DELHI STATE NCT OF PUNJAB .....Appellant Through: Mr. Mohit Mathur, Sr. Adv. with Mr. Karan Sharma, Mr. Harsh Gautam, Mr. Mohit Siwach, Advs.

Ms. Richa Kapoor, Mr. Kumar Anand, Ms. Udipti Chopra, Advs. versus STATE GOVT. OF NCT OF DELHI & ORS. .....Respondents Through: Mr. Anurag Ahluwalia, CGSC with Inspector Dinesh Kumar, PS Janakpuri Mr. Sanjay Jain, Sr. Adv. for Delhi Police Mr. Pranav Narang, Mr. Neeraj, Mr.Satya Ranjan Swain, Mr. Himanshu Sethi, Ms. Aishwarya Chhabra, Advs.for R-3 and 4 + W.P.(CRL)1216/2022, CRL.M.A. 10348/2022 SH MANPREET SINGH SSP (RURAL) DISTRICT SAS NAGAR PUNJAB .....Appellant Through: Ms. Richa Kapoor, Mr. Kumar Anand, Ms. Udipti Chopra, Advs. versus STATE GOVT. OF NCT OF DELHI & ORS .....Respondent Through: Mr. Anurag Ahluwalia, CGSC for R-

1 CGSC with Inspector Dinesh Kumar, PS Janakpuri Mr. Sanjay Jain, Sr. Adv. for Delhi Police Ms. Manisha Agrawal Narain, CGSC with Mr.Chandan Deep Singh, Mr. Sandeep Singh Someria, Mr. Akhil Gupta, Advs.for State of Haryna Mr. Pranav Narang, Mr. Neeraj, This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 Mr.Satya Ranjan Swain, Mr. Himanshu Sethi, Ms. Aishwarya Chhabra, Advs.for R-3 and 4 CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 25.07.2024 Mr. Mohit Mathur, learned senior counsel for the State of Punjab submits that they are waiting for certain instructions and requested that the matter may be adjourned.

List on 02.09.2024.

DINESH KUMAR SHARMA, J JULY 25, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~91 * IN THE HIGH COURT OF DELHI AT NEW DELHI BAHIDULLAS @ BAIDUL .....Petitioner Through: Mr. Jitender Tyagi, Mr. Rajesh Pandey, Mr. Amit Vashisht, Advs.

versus STATE OF NCT DELHI .....Respondent Through: Ms. Priyanka Dalal, APP for the state with SI Vivek Tomar, ASI Bediram, PS NFC, ND CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 CRL.M.A. 21760/2024 (Exemption) Exemption is allowed subject to all just exceptions.

1. The present petition has been filed under Section 482 Cr. PC seeking quashing of case FIR No.0164/2023, registered at PS New Friends Colony under Sections 21/61/85 NDPS Act. The petitioner has also praying for recalling of order of 04.10.2023 whereby the petitioner has declared as P.O.

2. Learned counsel for the petitioner submits that the only evidence against the petitioner is the disclosure of co-accused.

3. Issue notice.

4. Learned APP for the State has accepted the notice and seeks time to file the status report.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06

5. Let the status report be filed.

6. List on 24.10.2024.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~92 * IN THE HIGH COURT OF DELHI AT NEW DELHI KISHAN KUMAR .....Petitioner Through: Mr. Sachet Sharma, Mr. Ayush Sharma, Advs.

versus STATE NCT OF DELHI AND ANR .....Respondents Through: Mr. Digam Singh Dagar, APP for the State with SI Vivek Kumar, PS Gandhi Nagar.

CORAM:

> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 CRL.M.A. 21782/2024 (Exemption) Exemption is allowed subject to all just exceptions.
>
> List on 05.08.2024.
>
> DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~87 * IN THE HIGH COURT OF DELHI AT NEW DELHI SACHIN KUMAR .....Petitioner Through: Mr. Pradeep Kumar Arya, Mr. Sanjeev Deshwal, Dr. Shyam lal Sagar, Mr. Rupender, Mr. Shayed Lamba, Mr. Ravi Kant, Mrs. Bhawna Tyagi, Mr. Satya Pal Tanwar, Advs. versus STATE(GOVT OF NCT OF DELHI) .....Respondent Through: Mr. Satish Kumar, APP for the State with SI Suman Bajaj, PS Mangol Puri.
>
> CORAM:
>
> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 CRL.M.A. 21844/2024 (Exemption) Exemption is allowed subject to all just exceptions.
>
> 1. The present bail application has been filed seeking anticipatory bail application in case FIR No,0677/2024 registered at PS Mangol Puri under Sections 376 IPC.
>
> 2. Learned counsel for the petitioner submits that prosecutrix had stated her age to be 35 years and alleged that she had met the petitioner in May, 2023 and had a friendship with him. It has further been submitted that in the FIR, the prosecutrix alleged that on 06.06.2023, This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 the petitioner took her to Japanese Park, Rohini and proposed for marriage. Initially, the prosecutrix had denied, however, the petitioner emotionally black mailed her on which the

prosecutrix agreed for love relationship. It has been alleged that in July 2023, the petitioner came to the house of the prosecutrix and after gaining her trust established physical relation with her. It has been stated that subsequently they had physical relationship several times. The prosecutrix alleged that when she reminded the petitioner for the marriage, the petitioner started abusing her and denied to have marriage with her. On 08.01.2024, the petitioner again came to the prosecutrix for maintaining their relation and on that day also, forcibly had the physical relationship. Prosecutrix filed the present FIR on 08.07.2024.

3. Issue notice.

4. Learned APP for the State has accepted the notice and seeks time to file the status report.

5. Let the detailed status report be filed.

6. Without going into the merits of the case, let the petitioner join the investigation as and when directed by the IO.

7. List on 14.08.2024.

8. In the meantime, no coercive steps be taken against the petitioner.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~88 * IN THE HIGH COURT OF DELHI AT NEW DELHI X .....Appellant Through: Ms.Abdul Qadir, Ms. Vrinda Goyal, Ms.Ekta M, Ms.Rashika Chopra, Advs.

versus STATE OF NCT OF DELHI .....Respondent Through: Ms. Priyanka Dalal, APP for the state with SI Kiran Dayal, PS Moti Nagar Ms. Tanya Agarwal, Mr. Gaurav Kalra, Advs. for Prosecutrix CORAM:

> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 CRL.M.A. 21762/2024 in CRL.A. 156/2022
>
> 1. The present application has been moved for the filing amended memo of parties. It has been submitted that inadvertently, the parent name and address of appellant has wrongly been mentioned in the memo of parties filed along with the appeal. Along with the application, copy of the Aadhar Card has been filed.
>
> 2. Let the amended memo of parties be taken on the record.
>
> 3. The application stands disposed of.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~89 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.L.P. 353/2024, MANOJ JAIN .....Petitioner Through: Mr. Anshul Rawat, Mr. Saurabh George, Advs.

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SUNIL JAIN

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CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 CRL.M.A. 21755/2024 (Exemption) Exemption is allowed subject to all just exceptions.

For the reasons stated in the application, the application is allowed and the delay of 3 days in refilling the petition, condoned.

Application stands disposed of.

The present appeal has been filed under Section 378(4) of Cr. PC challenging the order/judgment dated 28.02.2024 whereby a complaint case No.2032/2017 titled as respondent has been acquitted.

Issue notice to the respondent through all permissible modes upon taking steps by the respondent, returnable on 07.11.2024.

At the outset, learned counsel for the petitioner submits that a connected matter is listed before the Court of Hon'ble Ms. Justice Neena This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 Bansal Krishna on 07.11.2024.

Let the matter be placed before the Court of Hon'ble Ms. Justice Neena Bansal Krishna on 07.11.2024 subject to the orders of Hon'ble Acting Chief Justice.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~90 and 97 * IN THE HIGH COURT OF DELHI AT NEW DELHI TARUN KUMAR & ANR. .....Petitioners Through: Mr. Roop Kumar, Mr.Akash, Mr.Maonj, Advs. with the petitioners versus THE STATE GOVT NCT OF DELHI & ANR. .....Respondents Through: Mr. Satish Kumar, APP for the state with SI Chulhand Pd. PS Bharat Nagar, Delhi Mr. Anshul Kumar, Mr.Bhanu Pratap, Mr.

Abhishek Kumar, Mr. Manish Mishra, Mr.Rahul, Mr.Vipin Sagar, Advs. with the respondent NARESH KUMAR & ORS. .....Petitioners Through: Mr. Anshul Kumar, Mr.Bhanu Pratap, Mr. Abhishek Kumar, Mr. Manish Mishra, Mr.Rahul, Mr.Vipin Sagar, Advs. with the petitioners versus STATE NCT OF DELHI AND ORS. .....Respondents Through: Mr. Satish Kumar, APP for the state with SI Chulhand Pd. PS Bharat Nagar, Delhi with the respondent CORAM:

> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 CRL.M.A. 21733/2024 (Exemption) in CRL.M.C. 5691/2024 Exemption is allowed subject to all just exceptions. CRL.M.C. 5691/2024 and CRL.M.C. 5734/2024
>
> 1. The present petitions have been filed seeking quashing of case FIR This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 No.83/2021 registered at PS Bharat Nagar under Sections 308/323/341/506/34 IPC in CRL.M.C. 5691/2024 and FIR No.0082/2021 registered at PS Bharat Nagar under Sections 308/323/341/354/506/509/34 IPC in CRL.M.C 5734/2024.

2. Both the counsel for the parties submit that the parties are neighbours and the incident happened at the spur of moment. It has been submitted that now the parties have reached on a settlement vide memorandum of settlement on following terms and conditions;

> "1. That the First Party and the Second Party have amicably settled their disputes/differences between them, being the subject matter of the abovementioned FIR no. 82 of 2021 dated 18.02.2021 was registered under Section 308/323,341,354/506/509/34, IPC registered at police Station Bharat Nagar and now both the parties are left with no grievances, whatsoever, against each other.
>
> 2. That it has been agreed between the parties that First Party shall file a quashing petition for quashing of said FIR No. 082/2021 registered at PS. Bharat Nagar and subsequent proceedings therein before Hon'ble High Court of Delhi qua the Petitioners only and not for any other accused persons named in the FIR/charge sheet.
>
> 3. That the Second Party shall cooperate in quashing the same by appearing in the same and giving necessary statement/no objection to quash the same qua the Petitioner.
>
> 4. That the present settlement has been reached by the parties with free volition and sound disposing mind. Consent of the parties has not been obtained by force, threat, fraud or undue influence from any person whatsoever."

3. It has also been submitted that nature of injuries suffered by the injured was simple in nature.

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The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06

4. Learned counsel submits that the case FIR No.83/2021 registered at PS Bharat Nagar under Sections 308/323/341/506/34 IPC in CRL.M.C. 5691/2024 no charge under Section 354 IPC had been framed. It is matter of the record that chargesheet in FIR No.0082/2021 registered at PS Bharat Nagar under Sections 308/323/341/354/506/509/34 IPC in CRL.M.C 5734/2024 has not been filed. As both the parties are neighbours and have already settled the disputes with each other.

5. In view of the above, FIR No.83/2021 registered at PS Bharat Nagar under Sections 308/323/341/506/34 IPC in CRL.M.C. 5691/2024 and FIR No.0082/2021 registered at PS Bharat Nagar under Sections 308/323/341/354/506/509/34 IPC in CRL.M.C 5734/2024 and all the other proceedings emanating therefrom are quashed.

6. The present petition along with all the pending applications stand disposed of.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~86 * IN THE HIGH COURT OF DELHI AT NEW DELHI RASHMI RATHI .....Petitioner Through: Mr.Rohan Wadhwa, Mr. Arun Kanwa, Mr. Baibhav, Mr. Yuvraj Bansal, Mr.Divij Gulati, Advs.

versus STATE OF N.C.T. OF DELHI .....Respondent Through: Mr. Priyanka Dalal, APP for the state with Inspector Mehrab Alam, Section-II, EOW CORAM:

> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 CRL.M.As. 21766-67/2024 (Exemptions) Exemptions are allowed subject to all just exceptions.
>
> 1. The present bail application has been moved under Section 439 Cr.

PC seeking regular bail in case FIR No.132/2022 registered at PS EOW under Sections 420/406/467/468/471 read with Section 120-B of IPC.

2. Learned counsel for the petitioner submits that the petitioner is in custody for the last 8 months.

3. Issue notice.

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The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06

4. Learned APP for the state has accepted the notice.

5. Let status report be filed.

6. List on 20.08.2024.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~85 * IN THE HIGH COURT OF DELHI AT NEW DELHI RAJU SHAH .....Petitioner Through: Ms. Dolly Sharma, Adv.

versus STATE NCT OF DELHI .....Respondent Through: Mr. Raghuvinder Varma, APP for the State with Inspector Chetan Singh, SI Raghubir Prasad, PS Khayala Mr. B.S. Bagga, Mr. Sahil Sharma, Mr. Hemant Dixit, Mr. Jitender Khurana, Mr. Pratual Saurabh,Mr. Vikas Nautiyal, Mr. Nishant Kumar, Mr.Ashok Kr. Malhotra, Ms. Kritika Sharma, Ms. Parul Saxena, Mr. Shubham Saini, Ved Prakash, Ms. Anjali Pandey, Advs. for R-3 CORAM:

> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 CRL.M.A. 21730/2024 (Exemption) Exemption is allowed subject to all just exceptions.
>
> 1. The present application has been filed under Section 439 Cr. PC seeking regular bail in case FIR No.236/2016 registered at PS Khyala under Sections 302/341/452/324/120B/34 IPC.
>
> 2. Issue notice.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06

3. Learned APP for the State has accepted the notice.

4. Let status report be filed.

5. List on 22.08.2024.

6. In the meantime, Nominal Roll also be called from the concerned Superintendent Jail before the next date of hearing.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~84 * IN THE HIGH COURT OF DELHI AT NEW DELHI MUKESH @ MUKESH RESWAL .....Petitioner Through: Mr. Satnarain Sharma, Mr. Mohit Siwas, Ms.Ashima Khatri, Mr. Hari Prakash Sharma, Mr. Vedant Sharma, Mr. Abhimanyu Kumar Sharma, Mr. Krishan Parmar, Mr. Anmol Lohia, Ms.Varsha Bhardwaj, Ms.Anita Bhardwaj,Ms Chanchal, Ms.Sidhi Arora, Mr. Parth Kohli, Mr. Anand, Mr. Sunil Jindal, Ms.Jyoti Sharma, Mr. KK Sharma, Mr. Ankit Sharma, Mr. Deepak Girdhar, Mr. Ashok Verma, Mr. Hitesh Kumar, Ms.Rashmi Chauhan. Advocates versus STATE .....Respondent Through: Mr. Satish Kumar, APP for the State CORAM:

> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 CRL.M.A. 21757/2024 in BAIL APPLN. 167/2024 Learned counsel for the petitioner seeks permission to withdraw the present bail application being BAIL APPLN. 167/2024 with liberty to file afresh in accordance with law.
>
> Liberty is granted.
>
> In view of the above, the present application stands disposed of and This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 the bail application being BAIL APPLN. 167/2024 is dismissed as withdrawn.
>
> Copy of this order given be dasti under the signature of the Court Master.
>
> DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~23and 24 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.A. 436/2022, CRL.M.A. 17909/2022 MS. X .....Appellant Through: Ms.Vrinda Grover, Mr. Soutik Banerjee Devika Tulsiani for Respondent 2 versus MANISH KUMAR & ANR. .....Respondents Through: Mr.Tarun Kaushik Proxy Counsel + CRL.REV.P. 750/2022, CRL.M.A. 22684/2022 MANISH KUMAR .....Petitioner Through: Mr.Tarun Kaushik Proxy Counsel versus STATE NCT OF DELHI AND ANR. .....Respondent Through: Ms.Vrinda Grover, Mr. Soutik Banerjee Devika Tulsiani for Respondent 2 CORAM:
>
> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 The matter was placed before this Court on 31.07.2023 on which date, the following order

was passed;

"During the course of submissions, it has been submitted that the charges in the present case were framed by the undersigned while being MM.

In view of the above circumstances, let the matter be placed before This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 another bench on 04.08.2023 subject to the orders of Hon'ble the Chief Justice."

In terms of order, let the matter be listed before another Bench on 08.08.2024 subject to the orders of Hon'ble the Acting Chief Justice.

Next date i.e. 07.08.2024 stands cancelled.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~74 to 82 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.A. 147/2022, CRL.M.A. 6757/2022 + CRL.A. 148/2022, CRL.M.As. 6775-76/2022 GITANJALI GUPTA .....Appellant Through: Ms. Rebecca M. John, Sr. Adv. with Mr. Setu Niket, Ms. Esha Mazumdar, Mr. Unnimaya, Mr.Ishan Singh, Ms. Chetna, Mr.Pravir Singh, Ms. Anshula Baruah, Advs.

versus STATE OF NCT OF DELHI & ANR. & ORS. .....Respondents Through: Ms. Priyanka Dalal, APP for the State with Inspector Ashish Dahima, ER-II, Crime Branch Mr. Satya Prakash Gautam in person + CRL.A. 913/2023, CRL.M.A. 29879/2023 MANIPAL TECHNOLOGIES LIMITED .....Appellant Through: Dr. Abhimanyu Chopra, Mr. Shauraya Vardhan Singh, Mr. Aman Chaudhary, Mr. Kushagra Jain, advs. versus STATE OFNCT OF DELHI & ANR. .....Respondents Through: Ms. Priyanka Dalal, APP for the State with Inspector Ashish Dahima, ER-II, Crime Branch Mr. Satya Prakash Gautam in person BINOD MANDAL .....Appellant Through: Dr. Abhimanyu Chopra, Mr. Shauraya Vardhan Singh, Mr. Aman This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 Chaudhary, Mr. Kushagra Jain, advs.

versus STATE OF NCT OF DELHI & ANR. .....Respondents Through: Ms. Priyanka Dalal, APP for the State with Inspector Ashish Dahima, ER-II, Crime Branch Mr. Satya Prakash Gautam in person DEEPAK RAO .....Appellant Through: Mr. Paresh B Lal, Adv.

versus STATE OF NCT OF DELHI & ANR. .....Respondents Through: Ms. Priyanka Dalal, APP for the State with Inspector Ashish Dahima, ER-II, Crime Branch SUNIL KUNJACHAN .....Appellant

Through: Mr. Arvind Nayyar, Sr. Adv. with Ms. Bhargavi Kannan, Mr. Akshay Joshi, Ms. Shivani Karmakar, Advs. versus STATE OF NCT OF DELHI & ANR. .....Respondents Through: Ms. Priyanka Dalal, APP for the State with Inspector Ashish Dahima, ER-II, Crime Branch SUNIL KUNJACHAN .....Appellant Through: Mr. Arvind Nayyar, Sr. Adv. with Ms. Bhargavi Kannan, Mr. Akshay Joshi, Ms. Shivani Karmakar, Advs.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 versus STATE OF NCT OF DELHI & ANR. .....Respondents Through: Ms. Priyanka Dalal, APP for the State with Inspector Ashish Dahima, ER-II, Crime Branch SRINIVASA A .....Appellant Through: Mr. Paresh B Lal, Adv.

versus STATE OF NCT OF DELHI & ANR. .....Respondents Through: Ms. Priyanka Dalal, APP for the State with Inspector Ashish Dahima, ER-II, Crime Branch + CRL.A. 914/2023, CRL.M.A. 29881/2023 TESTPREP PRINTS PRIVATE LIMITED, ...Appellant Through: Mr. Paresh B Lal, Adv.

versus STATE OF NCT OF DELHI & ANR. .....Respondent Through: Ms. Priyanka Dalal, APP for the State with Inspector Ashish Dahima, ER-II, Crime Branch CORAM:

> HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 These matters are batch matters and are listed for final hearing. Let these matters be listed for final hearing on 24.09.2024 to 26.06.2024 at 02.30 PM and 28.10.2024 and 29.10.2024 at 02.30.

In the meantime, the petitioners are directed to file the joint This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 convenience set well in advance to the respondents.

Respondents are also directed to file the brief written submissions not exceeding five pages well in advance to the petitioners.

Interim orders to continue.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~83 * IN THE HIGH COURT OF DELHI AT NEW DELHI + CRL.A. 260/2017, CRL.M.A. 18209/2023 DEVENDER TOMAR .....Appellant Through: Mr. Murari Tiwari, Mr.Chandra Prakash,

Ms. Nimisha Gupta, Mr.Mukund Gupta, Advs.

versus CENTRAL BUREAU OF INVESTIGATION .....Respondent Through: Mr. Atul Guleria, SPP for CBI with Ms. Roopali Wadhawan, Mr. Bohit Sharma, Ms. Parul Yadav, Mr. Surender Sharma, Advs.

CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 Part arguments heard.

List for further arguments on 06.08.2024.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~68 * IN THE HIGH COURT OF DELHI AT NEW DELHI + W.P.(CRL) 2143/2022 VINOD & ORS. .....Petitioners Through: None.

versus STATE GOVT. (NCT) OF DELHI & ORS. .....Respondents Through: Mr. Sanjeev Bhandari, ASC with Ms. Spriha Bhandari, Ms. Charu Sharma, Mr.Arjit Sharma, Mr.Vaibhav Vats, Advs. with SI Sonu Kumar, PS Sultan puri CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 None has appeared for the petitioner on the last date. Today also none has appeared for the petitioner. Hence, the petition stands dismissed in default for non prosecution.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~69 * IN THE HIGH COURT OF DELHI AT NEW DELHI + W.P.(CRL) 2238/2022 NEETU GUPTA .....Petitioner Through: Petitioner in person.

versus GOVT.OF NCT DELHI AND ORS. .....Respondents Through: Ms. Nandita Rao, ASC with Mr. Amit Peshwarni, Adv.SI Vineet Kumar, PS Neb Sarai with respondent in person CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 Petitioner is seeking an adjournment as she wants to change her counsel List on 07.10.2024.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal

by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~70 * IN THE HIGH COURT OF DELHI AT NEW DELHI + W.P.(CRL) 2366/2022, CRL.M.A. 20631/2022 MISS KAMINI KHANNA .....Petitioner Through: petitioner in person.

versus COMMISSIONER OF POLICE AND ANR. .....Respondents Through: Mr. Sanjeev Bhandari, ASC with Ms. Spriha Bhandari, Ms. Charu Sharma, Mr.Arjit Sharma, Mr.Vaibhav Vats, Advs. with SI Nandan Singh, PS CR Park CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 An adjournment has been sought on behalf of the petitioner. The matter is adjourned to 28.02.2025.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~71 * IN THE HIGH COURT OF DELHI AT NEW DELHI + W.P.(CRL) 2710/2022 ASHISH CHOPRA .....Petitioner Through: None.

versus THE STATE NCT OF DELHI .....Respondent Through: Ms. Nandita Rao, ASC with Mr. Amit Peshwarni, Adv.Inspector Ranbir Singh, PS Preet Vihar.

CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 None has appearing for the petitioner since February, 2023. Hence, the petition stands dismissed in default for non prosecution.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~72 * IN THE HIGH COURT OF DELHI AT NEW DELHI + W.P.(CRL) 2918/2022 AVIRAL RAWAL & ORS. .....Petitioners Through: None.

versus STATE (GOVT. OF NCT OF DELHI) & ANR. .....Respondents Through: Ms. Nandita Rao, ASC with Mr. Amit Peshwarni, Adv.SI Hemant IFSO/Special Cell/.NB CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 An adjournment has been sought on behalf of the respondent as respondent No.2 is not present today.

List on 14.02.2025.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~73 * IN THE HIGH COURT OF DELHI AT NEW DELHI + W.P.(CRL) 35/2024 SH, MOHIT KUMAR & ORS. .....Petitioners Through: Mr. K. K. Sharma, Adv.(VC) versus STATE (GOVT, NE T OF DELH I) & ORS. .....Respondents Through: Ms. Rupali Bandhopadhyay, ASC with Mr.Abhijeet Kumar, Mr.Sagar Mehlawat, Advs.

CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 An adjournment has been sought on behalf of the petitioner as petitioner No.4 is not present today as he has undergone for surgery.

List on 05.11.2024.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~51 * IN THE HIGH COURT OF DELHI AT NEW DELHI + W.P.(CRL) 81/2022 MS. X .....Petitioner Through: Mr. Dhruva Bhagat, Ms.Ashna Bhagat, Ms. Somya Bhagat, Advs.

versus

STATE

Th

Peshwani,Advocate with SI Hemant IFSO/Special Cell/ND CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 CRL.M.A. 883/2022 (Exemption) Exemption is allowed subject to all just exceptions. Application stands disposed of. W.P.(CRL) 81/2022 After some arguments, learned counsel for the petitioner seeks permission to withdraw the present petition, however the penalty imposed vide impugned order dated 12.10.2021 may be waived.

In view of the submissions made above, the present petition stands dismissed as withdrawn and the order dated 12.10.2021 is modified only to the extent that the cost of Rs.1,000/- imposed upon the petitioner is waived.

Accordingly, the present petition stands dismissed as withdrawn.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~52 * IN THE HIGH COURT OF DELHI AT NEW DELHI + W.P.(CRL) 1848/2022 KUMUD MATHUR AND ANR .....Petitioners Through: Mr. Vikram Singh Kushwaha, Adv.(VC) versus KHUSHBOO MATHUR .....Respondent Through: Ms. Sadiya Ali, Adv.(VC) CORAM:

HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 Both the learned counsel for the parties submits that the parties are at the final stage of amicable settlement.

At request, the matter is adjourned to 09.12.2024.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 $~53 to 67 * IN THE HIGH COURT OF DELHI AT NEW DELHI + W.P.(CRL) 1923/2022 HARSH KHANNA .....Petitioner Through: Mr. Bhagabati Prasad Padhy, Mr.Binod Kumar Behera, Advs. versus SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent Through: Mr. Amit Tiwari, CGSC with Mr. Priyanshu, Ms. Priyanka, Ms.Harshita, Mr. Dhruv, Advs. Mr.Piyush Kumar,Sr. Prosecutor with Ms. Nupur Grover, Mr. Vibhav Singh,Advs.

+ W.P.(CRL) 1934/2022
JAGDISH PAMPANNA KORE

Through: Mr. Bhagabati Prasad Padhy, Mr.Binod Kumar Behera, Advs. versus SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent Through: Mr.Piyush Kumar,Sr. Prosecutor with Ms. Nupur Grover, Mr. Vibhav Singh,Advs.

+ W.P.(CRL) 1936/2022
RAKESH K MEHTA
Through:

ve

SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent Through: Ms. Shiva Lakshmi, CGSC with Mr. T. Hari Hara Sudhan, Advs.

Mr.Piyush Kumar,Sr. Prosecutor with This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 Ms. Nupur Grover, Mr. Vibhav Singh,Advs.

Mr. Ajay Digpaul, CGSC with Mr. Kamal Digpaul, Ms. Akanksha Kumari, Ms. Shweta Ravi, Ms.Nidhi Sharma,Advs for UOI + W.P.(CRL) 1938/2022 PUNEET BANSAL .....Petitioner Through: Mr. Bhagabati Prasad Padhy, Mr.Binod Kumar Behera, Advs. versus SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent Through: Mr. Satya Ranjan Swain (Senior Panel Counsel -CG) with Mr Kautilya Birat, Adv Mr.Piyush Kumar,Sr. Prosecutor with Ms. Nupur Grover, Mr. Vibhav Singh,Advs.

+ W.P.(CRL) 1993/2022, CRL.M.A. 17262/2022 VIKAS SRIVASTAVA .....Petitioner Through: Mr. Bhagabati Prasad Padhy, Mr.Binod Kumar Behera, Advs. versus SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent Through: Mr.Piyush Kumar,Sr. Prosecutor with Ms. Nupur Grover, Mr. Vibhav Singh,Advs.

Mr. Nitinjya Chaudhry, Sr. Panel counsel with Mr. Rahul Mourya, Advs. for R/UOI + W.P.(CRL) 1996/2022, CRL.M.A. 17272/2022 VASANT S KOTHARI .....Petitioner This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 Through: Mr. Bhagabati Prasad Padhy, Mr.Binod Kumar Behera, Advs. versus SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent Through: Ms. Shiva Lakshmi, CGSC with Mr. T. Hari Hara Sudhan, Advs.

Mr.Piyush Kumar,Sr. Prosecutor with Ms. Nupur Grover, Mr. Vibhav Singh,Advs.

Mr. Anurag Ahluwalia, CGSC with Mr. Abhinav Siddhant, GP for R-1 + W.P.(CRL) 2011/2022, CRL.M.A. 17411/2022 PRABHAT CHANDER .....Petitioner Through: Mr. Bhagabati Prasad Padhy, Mr.Binod Kumar Behera, Advs. versus SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent Through: Mr.Piyush Kumar,Sr. Prosecutor with Ms. Nupur Grover, Mr. Vibhav Singh,Advs.

+ W.P.(CRL) 2013/2022, CRL.M.A. 17462/2022 RAJENDER SINGH .....Petitioner Through: Mr. Bhagabati Prasad Padhy, Mr.Binod Kumar Behera, Advs. versus SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent Through: Mr.Piyush Kumar,Sr. Prosecutor with Ms. Nupur Grover, Mr. Vibhav Singh,Advs.

Mr. Satya Ranjan Swain, Sr. Panel Counsel with Mr. Kautilya Birat, Adv. for SFIO This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:06 + W.P.(CRL) 2014/2022, CRL.M.A. 17467/2022 NITIN BALARAM JADHAV .....Petitioner Through: Mr. Bhagabati Prasad Padhy, Mr.Binod Kumar Behera, Advs.

versus SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent Through:

+ W.P.(CRL) 2023/2022, CRL.M.A. 17513/2022 SUSHIL KUMAR .....Petitioner Through: Mr. Bhagabati Prasad Padhy, Mr.Binod Kumar Behera, Advs. versus SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent Through: Mr. Satya Ranjan Swain (Senior Panel Counsel -CG) with Mr Kautilya Birat, Adv Mr. Srivats Kaushik, Sr. Panel Counsel withMr. Shriram Tiwary, Adv.

Mr. Nitinjya Chaudhry, Sr. Panel counsel with Mr. Rahul Mourya, Mr. Shriram Tiwary, Mohd. Slaman Razi, Advs. for R/UOI 63 + W.P.(CRL) 2026/2022, CRL.M.A. 17539/2022 SUSHIL KUMAR TYAGI .....Petitioner Through: Mr. Bhagabati Prasad Padhy, Mr.Binod Kumar Behera, Advs. versus SERIOUS FRAUD INVESTIGATION OFFICE .....Respondent Through: Mr. Srivats Kaushik, Sr. Panel Counsel withMr. Shriram Tiwary, Adv.

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HON'BLE MR. JUSTICE DINESH KUMAR SHARMA ORDER % 26.07.2024 Ms. Shiva Lakshmi, CGSC for the SFIO submits that the certain matters arising out of the impugned summoning order dated 16.08.2019 in the matter of SERIOUS FRAUD INVESTIGATION OFFICE v. Bhushan Steel Company pending before the Court of Hon'ble Mr. Justice Subramonium Prasad for 20.08.2024.

Learned counsel further submits that Hon'ble Mr. Justice Subramonium Prasad has heard the mater in part.

Since summoning order under challenge is the same and the Coordinate Bench of this Court is hearing the same as part heard, it would be proper if present matters be placed before the Court of the Hon'ble Mr. Justice Subramonium Prasad.

This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:07 List these matters before the Court of Hon'ble Mr. Justice Subramonium Prasad on 20.08.2024 subject to the orders of Hon'ble Acting Chief Justice.

DINESH KUMAR SHARMA, J JULY 26, 2024 Pallavi This is a digitally signed order. The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/07/2024 at 22:28:07